



INSTITUTE FOR
REFORMING GOVERNMENT



— WISCONSIN OPEN RECORDS · 2024–2026

Agency Sunshine Report

Twenty offices. One standard — the State's own. Measured from the agencies' own tracking logs.

ABOUT

About the Institute for Reforming Government and the Center for Investigative Oversight

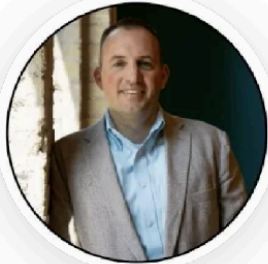
The Institute for Reforming Government (IRG) is focused on developing free-market and limited-government reforms, taking action on them, and getting results for Wisconsin. Founded in 2018, IRG has quickly grown into one of the state's largest think tanks, boasting an elite policy team with decades of experience in state and federal government, trade associations, and statewide campaigns. Most importantly, IRG gets results for the conservative movement in Wisconsin.

IRG's Center for Investigative Oversight (CIO) exists to hold Wisconsin's government to the standards it has set for itself—and to give the public the tools to check the record without having to take the government's word for it. Government transparency is not a partisan cause, and this report does not treat it as one. It measures what Wisconsin's executive agencies actually do against one standard—the State's own—and applies that standard to every office the same way, regardless of the office's size, its mission, or the party of the official who runs it.

The Institute for Reforming Government is a 501(c)(3) non-profit that wants to give all Wisconsinites an opportunity to succeed and prosper. IRG does this by developing policy reforms, engaging communities, and holding government accountable.

IRG's Center for Investigative Oversight supports rigorous, independent, and objective oversight of state government and its agencies.

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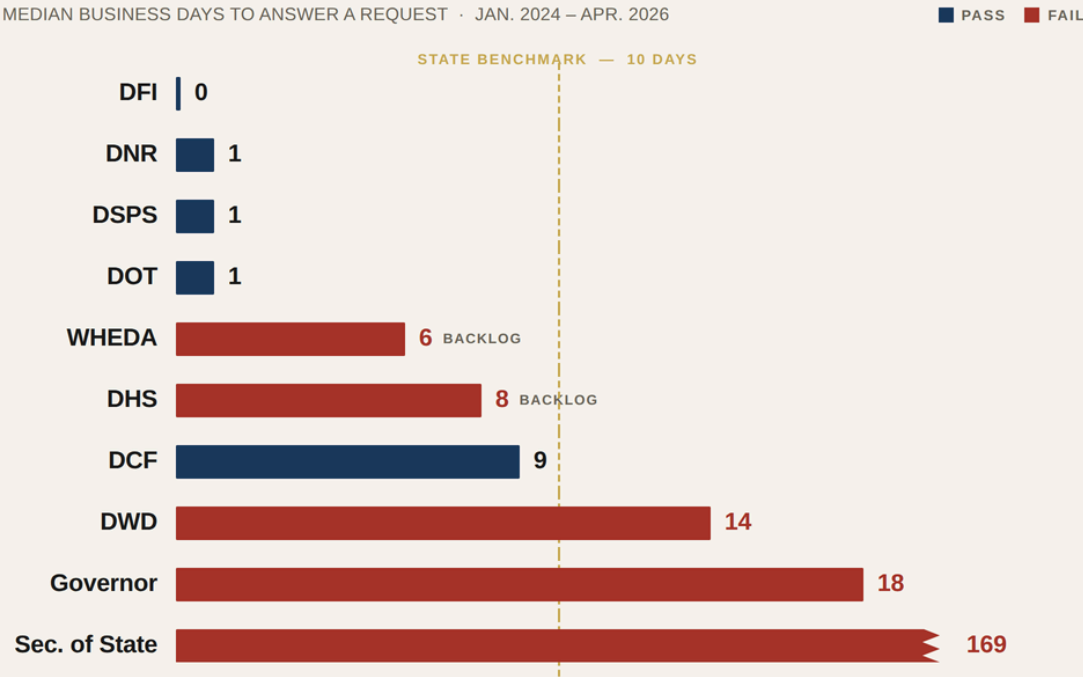
How Long Wisconsin Makes You Wait

INSTITUTE FOR REFORMING GOVERNMENT · CENTER FOR INVESTIGATIVE OVERSIGHT

How Long Wisconsin Makes You Wait

Every agency answers the same open records law. Their answers are not the same.

MEDIAN BUSINESS DAYS TO ANSWER A REQUEST · JAN. 2024 – APR. 2026



WHEDA and DHS beat the 10-day median but fail on backlog — 10% and 28% of requests still open. The Secretary of State bar runs off the scale.

76

DAYS AND COUNTING

DATCP and the Department of Revenue have produced nothing. No records. No denial. No fee estimate.

Wisconsin used to publish these numbers itself. The public dashboard went dark in 2019.

Source: each agency's own records log, obtained by IRG under Wis. Stat. § 19.35. Benchmark: Wisconsin DOJ guidance for a simple request.

Executive Summary

How long should a Wisconsinite wait to see a public record? A day? A week? A year? Under Wisconsin law the answer is “as soon as practicable and without delay,” and for a simple request the State’s own Department of Justice treats ten business days as the outer edge of reasonable.¹ For most of the last decade, the public did not have to ask how agencies were doing: two executive orders required every agency to track its records requests and publish its response times on a statewide dashboard. That dashboard went dark in 2019. Nobody repealed the orders that built it. The current administration simply stopped treating them as binding and put nothing in their place. This report does its work by hand: IRG asked 20 state agencies and constitutional offices for their own tracking logs and measured how fast, and how honestly, each one answers the public.

The spread is enormous, and it is a choice. The best agencies answer the public the same day, with the staff and budget they already have. The worst make the public wait the better part of a year, then certify, in writing, that everything was handled “without delay.” What separates them is how each office treats the public’s right to know: as a duty to meet, or as an inconvenience to manage.

Key Findings

Best in class: the Department of Financial Institutions (DFI): median zero business days across 695 logged requests, 98 percent within the benchmark.

Speed scales: the Department of Natural Resources (DNR, 17,831 requests) and Department of Transportation (DOT, 30,808 requests) both answer the typical request in one business day. The slowest offices on this board handle a fraction of that volume.

The floor: the Secretary of State (SOS): median 169 business days, not one request closed within 30, while its cover letter certifies everything was resolved “without delay.” Its own data says otherwise.

Agencies do not measure themselves: SOS, DWD, DCF, and DOT each reported that they keep no response-time records. Their own logs contain every date needed to compute the number. IRG computed it for them.

The office at the top sets no example: the Governor’s Office took 59 business days to produce its log, answered only one of the request’s three parts, ranks ninth of ten, and is slowing. Its median wait has risen every year since 2024.

Good paperwork can hide a backlog: DHS acknowledges every request within a business day and files quarterly reports, yet carries the study’s heaviest backlog (roughly 28 percent open), and its published average understates the typical wait roughly fourfold.

Two agencies have simply gone dark: as of August 6, 2026, the Department of Agriculture, Trade and Consumer Protection (DATCP) and the Department of Revenue (DOR) have produced nothing for 76 business days: no records, no denial. A 2019 review praised both as models of responsiveness.

The fix already runs inside state government: DOT still tracks requests in a system built to Executive Order #189, down to a SharePoint address named “open-eo189,” and DVA still publishes the public dashboard the orders envisioned. Every practice this report recommends is running today inside at least one Wisconsin agency.

¹ Wis. Stat. § 19.35(4)(a) (an authority must, “as soon as practicable and without delay,” either fill a records request or notify the requester of its determination to deny); Wisconsin DOJ, Public Records Law Compliance Guide (June 2025) (ten business days generally reasonable for a simple request).

Background

Wisconsin's open records tradition is older than the statute that carries it. The 1849 revised statutes opened county officers' records to inspection. Chapter 178, Laws of 1917 extended that policy to state, municipal, and school district records generally, and it stood largely unchanged until the modern law took effect in 1983. That law opens with a declaration that the people are entitled to "the greatest possible information regarding the affairs of government."² When a citizen asks for a record, the custodian has two lawful choices: produce it or deny it in writing, "as soon as practicable and without delay." Compliance at some unspecified future time is not among the options.³ This report therefore counts a request left open without an answer as outstanding: a violation in progress. The State's own June 2025 compliance guide is to the same effect, instructing custodians to respond to every request, including those for which no responsive records exist. A requester who prevails in court may recover fees and damages, and an arbitrary delay can draw punitive damages and a forfeiture. That fee remedy is narrower than it reads. In 2022 the Wisconsin Supreme Court held that fees under § 19.37(2)(a) require a judicially sanctioned change in the parties' legal relationship, which means an authority that sits on records for months and releases them only once it is sued may owe the requester nothing.⁴

Two Walker-era executive orders supply the best-practice baseline. [Executive Order #189 \(March 11, 2016\)](#) directed agencies to fulfill simple requests within 10 business days where practicable, acknowledge receipt within one business day, maintain a tracking system, cap staff-time fees, and build a performance dashboard. [Executive Order #235 \(March 9, 2017\)](#) directed agencies to post their numbers (requests received, completed, and average time to fulfill) on a public dashboard, updated quarterly. The orders worked, and someone outside the administration said so. The Wisconsin State Journal measured roughly a 30 percent improvement in agency response times in the year after the first order issued, and in 2018 the non-partisan Wisconsin Freedom of Information Council gave Governor Walker its "Opee" award for Political Openness.⁵ The benchmark is not a partisan artifact either. The ten-business-day figure belongs to the Department of Justice, and Attorney General Kaul recommends it today as his predecessor Attorney General Schimel did before him.⁶

Neither the orders nor the administration that issued them was above criticism, and this report will not pretend otherwise. In July 2015 a budget motion drafted with the Governor's office would have swept legislative and executive deliberative materials out of the records law, and was abandoned only after a public revolt. That August the Public Records Board expanded the definition of "transitory records" in a way that permitted immediate destruction, then rescinded the expansion five months later under roughly 1,900 protest emails. That December, former cabinet members said a senior aide had instructed them to avoid

² [Wis. Stat. § 19.31](#) (declaration of policy); [§§ 19.32–19.39](#). On the lineage: [Wis. Rev. Stat. ch. 10, § 137](#) (1849) (county officers' records open to inspection); [ch. 178, Laws of 1917](#) (extending the policy to state, municipal and school district records generally); [ch. 335, Laws of 1981](#) (current law, effective Jan. 1, 1983).

³ [WTMJ, Inc. v. Sullivan](#), 204 Wis. 2d 452, 457–58, 555 N.W.2d 140 (Ct. App. 1996).

⁴ [Wis. Stat. § 19.37\(1\)](#) (mandamus); [§ 19.37\(2\)\(a\)](#) (fees and damages); [§ 19.37\(3\)–\(4\)](#) (punitive damages and forfeiture); [Friends of Frame Park, U.A. v. City of Waukesha](#), 2022 WI 57 (fees under [§ 19.37\(2\)\(a\)](#) require a judicially sanctioned change in the parties' legal relationship; rejecting the court of appeals' causal-nexus test).

⁵ Matthew DeFour, [State agencies responding more quickly to records requests since last year](#), Wisconsin State Journal (Mar. 12, 2017) (roughly 30 percent improvement; the figure is the newspaper's, not IRG's); Wisconsin Freedom of Information Council, press release naming its 2018 "Opee" award recipients (Mar. 7, 2018).

⁶ Wisconsin DOJ, [Public Records Law Compliance Guide](#) (June 2025). The ten-business-day guidance has been carried forward by Attorney General Kaul and, before him, by Attorney General Schimel, whose office created the Department's Office of Open Government in 2015.

state email and phones. Executive Order #189 issued three months after that. A reform can be worth keeping and still have been prompted by embarrassment. This one was, and it is a better standard for it: those practices were written by people who had just been caught on the wrong side of them.

What happened next is the part most often gotten wrong, in both directions. No one repealed the orders, and no one gutted the records law. Executive Orders #189 and #235 have never been rescinded. The current administration simply declined to treat them as binding, taking the position that it follows state public records law and Department of Justice guidance, “not executive orders issued by prior administrations.”⁷ A governor is entitled to that view of a predecessor’s internal directives, and IRG does not contend otherwise. The problem is what went with them. The statutory floor did not move an inch; the layer above it did. Gone are the one-day acknowledgment, the five-day status update, the mandatory tracking fields, the uniform fee schedule, and the published numbers. By February 2019 the statewide dashboard was offline, and a September 2019 review found it gone.⁸ No replacement standard has issued in the seven years since. What Wisconsin gave up was not its open records law. It was the only mechanism that made compliance with that law measurable from outside. This report asks how closely agencies follow those practices today: how quickly they respond, and how many requests remain unfulfilled.

The Scorecard



⁷ Statement of the Governor’s office to the Wisconsin Freedom of Information Council, reported in Bill Lueders, Your Right to Know: Evers can do better on openness, Wisconsin Watch (Oct. 9, 2019). Neither order has been rescinded, and no successor order on public records has issued.

⁸ Wisconsin Institute for Law & Liberty, [study of state agency compliance with the Walker open government executive orders](#) (Sept. 2019).

On April 22 and 27, 2026, IRG sent an identical three-part request to 20 state agencies and constitutional offices: each office's tracking log or weekly pending-request snapshot, any records of its average monthly response times, and any compilation of significant releases, covering January 1, 2024 through April 22, 2026. Every elapsed-time figure in this report runs from the date that office was served. From each usable log, IRG counted business days from the date a request was received to the date of the agency's final response, pooling every request rather than averaging division averages. An agency **passes** if its median is 10 business days or fewer and fewer than 10 percent of its logged requests remain outstanding. One standard, applied the same way to every office. The second half of that test is not an invention of this report. The 2019 review reported, office by office, the share of logged requests carrying no response date at all: under 5 percent at DNR, 9 percent at DOJ, 23 percent at DHS, and roughly one in three at the Governor's Office. Those are backlog rates under another name. This report measures the thing directly and states the threshold in advance.

Limitations.

Four limitations are worth stating plainly. First, the ten-business-day figure is DOJ policy for a simple request covering a limited number of easily identifiable records; the guidance itself allows that broader requests may reasonably take longer, and Wisconsin law sets no fixed deadline at all. This report does not treat any single request as late. It reports the median across every request an office logged, which is the measure the DOJ itself publishes for its own office, and a median across hundreds or thousands of requests is not moved by the handful that are genuinely complex. Second, this report treats every request alike. Some searches are harder than others, and no agency's log distinguishes them. Request mixes differ as well: 95 percent of DOT's volume is State Patrol crash reports, which are routine. That objection can be tested. Strip the State Patrol out entirely, and DOT's remaining 1,642 requests still close at a two-day median. WHEDA, with 188 requests and the best-built tracking system in this study, takes six business days. The Secretary of State, with 59 requests, takes 169. Neither volume nor complexity explains that spread. Third, the executive orders never reached every office on this board. They bound agencies under the Governor's supervision. The Secretary of State and the State Treasurer are constitutional offices outside that authority, as were the Department of Justice and the Department of Public Instruction when the 2019 review excluded them for exactly that reason. This report scores them anyway, because the statute binds every authority on identical terms and the ten-day guidance is addressed to all of them. It does not claim the executive orders set their baseline. Fourth, where this report compares an agency to its 2019 figures, the comparison is directional only. The 2019 review took a six-month window and averaged the requests that had closed; this report takes 28 months and reports the median across every request logged. Those two numbers do not subtract. They support a statement about which way an agency has moved, and not a precise delta.

Rank (by median)	Agency	Total requests	Median business days	% outstanding	Pass/Fail
1	DFI	695	0	1.3%	Pass
2	DNR	17,831	1	0.3%	Pass
3	DSPS	1,091	1	0.4%	Pass
4	DOT	30,808	1	1.8%	Pass
5	WHEDA	188	6	10.1%	Fail
6	DHS	2,422	8	~28%	Fail
7	DCF	1,324	9	2.5%	Pass
8	DWD	782	14	2.7%	Fail
9	Office of the Governor	404	18	9.2%	Fail
10	SOS	59	169	0%*	Fail

*SOS shows 0% outstanding because all visible requests are closed, but it sits on requests for months and closes them in batches; its older log puts true receipt-to-completion on routine certified-copy requests near 248 business days. WHEDA fails on backlog (10.1% outstanding) despite a timely median; DHS fails on backlog (~28% open); DCF passes at Rank 7 because the test has two parts and DCF clears both. DFI figures are from its native 2024–2025 logs; DHS figures from its quarterly master reports; DWD figures include eight OCR-recovered pages; DNR figures are pooled across its four log systems.

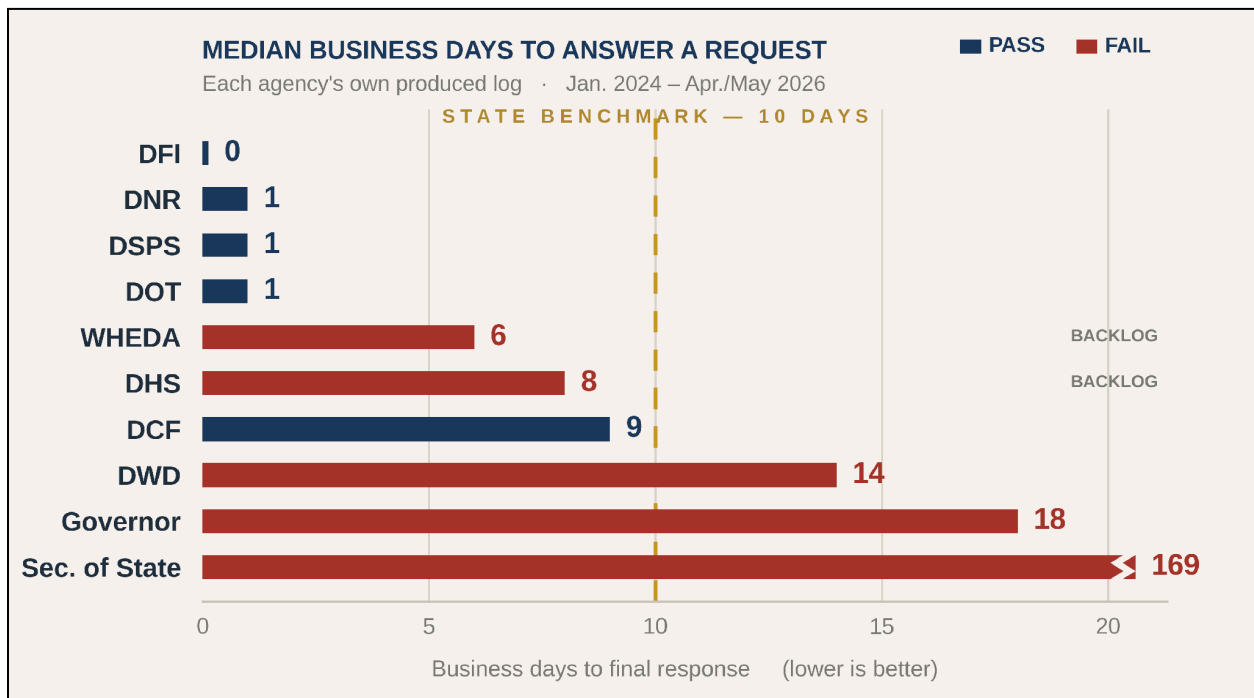


Figure 1. Median business days to final response, by agency, from each agency's own produced log (Jan. 2024–Apr./May 2026). Benchmark: 10 business days. WHEDA and DHS beat the 10-day median but fail on backlog, marked here; the Secretary of State bar runs off the scale at 169.

Agency by Agency Ranking

DFI⁹ — Rank 1, Pass. The median request closes the same or next business day; 98 percent close within the benchmark; nine of 695 logged requests remain open. DFI answered IRG in three business days, and its log shows that pace is the rule. One caution: DFI produced its log as scanned images and, starting in 2025, stopped recording what each request was about. A log that no longer says what was asked will make the next round of oversight harder, however fast the answers come.

DNR¹⁰ — Rank 2, Pass. The newest arrival on the board is one of its best performers. Across 17,831 requests in four log systems, the typical request closes in one business day (86 percent within benchmark; 0.3 percent outstanding). Even the hard cases move: complex requests, the multi-program searches where policy records live, run a 15-business-day median. The route the log took to reach IRG is harder to defend: DNR sat silent for 57 business days, missed the June 3 target its own tracking system had assigned to IRG's request, and produced records on July 10 and 15 only after IRG's July 9 letter invoking its mandamus remedies. An agency this good at answering the public was this slow to show its work.

DSPS¹¹ — Rank 3, Pass. Passes at scale: 1,091 requests, a one-day median, 81 percent within benchmark, four requests outstanding. Its log is richly built: receipt, acknowledgment, response dates, the agency's own days-to-fulfill count, outcome, and channel, even though it arrived as scanned images.

DOT¹² — Rank 4, Pass. DOT answers more records requests than every other agency in this study combined: 30,808 across seven divisions, 95 percent of them State Patrol traffic. It answers the typical one the next business day. The result survives every cut: excluding the State Patrol entirely, the remaining 1,642 requests close at a two-day median; excluding statutory carve-outs changes nothing. Two blemishes. First, the exception to DOT's speed was IRG's own request: its divisions compiled their logs by May 6, ten business days in, and the package then sat in the general counsel's office until July 21, 64 business days, and was answered eight business days after IRG raised mandamus. Second, DOT told IRG it "does not track response time," making the study's fourth-fastest agency one more office whose own log contains a number it never computes. To DOT's credit, it never stopped running the executive-order machinery: its trackers carry column headings lifted from Executive Order #189, one division's log lives at a SharePoint address named "open-eo189," and 94.5 percent of requests are acknowledged within one business day. DOT is also this report's clearest evidence that an agency can change. In 2019 it was one of two departments that produced nothing at all: it acknowledged the request, sent a status update four weeks later, and then went silent past 40 business days. Today it answers the typical member of the public in a single business day. It still took 64 to answer the one request that asked how fast it answers.

⁹ The Department of Financial Institutions charters and examines Wisconsin's state-chartered banks and credit unions, regulates securities offerings and franchises, and operates the state's central business-registration and Uniform Commercial Code filing systems. It runs on fees rather than general-purpose revenue.

¹⁰ The Department of Natural Resources regulates air and water quality, solid and hazardous waste, and wetland and shoreland protection; manages fish, wildlife, forests, and the state parks; and fields its own law-enforcement arm. Its permitting and enforcement files are the records landowners, developers, consultants, and litigants come looking for.

¹¹ The Department of Safety and Professional Services credentials Wisconsin's licensed professions (nurses, accountants, electricians, barbers), reviews building plans for public safety, and houses the Prescription Drug Monitoring Program. Its records are overwhelmingly licensing, examination, and inspection files.

¹² The Department of Transportation builds and maintains the state highway system, licenses drivers, registers vehicles, and houses the State Patrol. That last function explains the volume: most of what the public asks DOT for is a traffic crash report.

WHEDA¹³ — Rank 5, Fail. The best-organized tracking system in the study: twelve fields, redaction reasons, the specific confidentiality statute cited for each denial. Its six-day median is timely too. WHEDA fails anyway, on backlog: 19 of 188 requests (10.1 percent) remain outstanding, with a tail of 2025 requests left open past 100 business days.

DHS¹⁴ — Rank 6, Fail. The best reporting machinery in this study: standardized quarterly reports, every request acknowledged within a business day. It also carries the widest gap in this study between what an agency reports and what requesters experience. The median closes in eight business days, but roughly 28 percent of 2,422 logged requests remain open, concentrated in nursing-home survey records at its quality-assurance division (median near 31 business days; more than 150 requests open past 100; the longest at 428). Its published average of roughly 15 days counts every division equally; weighted by where requests actually land, the real figure is closer to 60. The eight-day median understates the wait for the same reason the Governor’s 2026 cohort does: it is computed on requests that have closed, and more than a quarter of DHS’s have not. DHS has been here before. The 2019 review found the department averaging nine business days, comfortably inside the benchmark, with 112 of its 487 logged requests carrying no response date at all: 23 percent. Seven years and a change of administration later, the speed has held and the backlog has not been worked down. It has grown.

DCF¹⁵ — Rank 7, Pass. The closest call on the board: a nine-day median across 1,324 requests, one day inside the benchmark, 2.5 percent outstanding. The pass is real and so is the tail. Only 54 percent of requests closed within ten business days, and the slowest quarter ran past 20. DCF is the other department that produced nothing for the 2019 review, having told it the records were forthcoming and then not sending them. This time it produced, and on time.

DWD¹⁶ — Rank 8, Fail. DWD told IRG it keeps no response-time records and no pending-request snapshot. In its own account, it does not measure itself. Its list carries a Date Closed column anyway, so IRG computed what DWD does not: a 14-day median across 782 requests, only 41 percent within benchmark, a tail reaching 284 days. Few requests are abandoned (2.7 percent outstanding); the failure is speed. Its redactions, by contrast, were handled by the book.

¹³ The Wisconsin Housing and Economic Development Authority finances affordable housing and small-business and agricultural lending and allocates the federal Low-Income Housing Tax Credit in Wisconsin. It is not a department and, by the Legislature’s own reckoning, not a state agency: it is a public body corporate and politic created under Wis. Stat. ch. 234, self-funded through bonding and outside the state budget. It is nonetheless an “authority” under Wis. Stat. § 19.32(1), and the open records law reaches it on the same terms as any department.

¹⁴ The Department of Health Services administers Medicaid and BadgerCare, runs the state’s public and behavioral health systems, and licenses and inspects nursing homes and assisted living facilities. Those inspection and complaint files are what a family reads before deciding where to place a parent. They are also the records at the center of what follows.

¹⁵ The Department of Children and Families runs child protective services, licenses child care and administers the Wisconsin Shares subsidy, enforces child support, and operates W-2. Its requesters are parents, providers, advocates, and reporters, and its files reach families at their most exposed.

¹⁶ The Department of Workforce Development administers unemployment insurance and worker’s compensation, operates the job centers and vocational rehabilitation, and enforces the state’s labor and civil rights statutes through its Equal Rights Division. Claimants, employers, and the lawyers on both sides all end up asking DWD for the file.

Office of the Governor¹⁷ — Rank 9, Fail. The office took 59 business days to answer a request about how quickly it answers requests, and answered only one of the request’s three parts. It produced a tracking log and asserted a blanket attorney work-product withholding, then said nothing at all about the other two parts: no records, no statement that none exist, no denial addressed to either one. The State’s own June 2025 guidance tells custodians that where no responsive records exist, they should say so. The log it produced ranks it ninth of ten. Across 404 requests, the typical one closed in 18 business days; only 40 percent closed within ten; 37 remain open, the oldest pending since January 2025. The office’s own log shows the wait rising every year:

Cohort	Median business days	% still open
2024 requests	14	0%
2025 requests	24	8%
2026 requests (through April 27)	44	40%

The 2026 median flatters the office: quick requests close first, so a cohort measured while 40 percent remains pending can only get worse. The log itself is thinner than the office’s obligations: six fields, no acknowledgment dates, no legal basis for withholdings, no fees. It also carries uncaught errors, including a request dated 1934 and five completion dates that precede their requests, the same defect the 2019 review had to screen out of this office’s log seven years ago. That review could not compute a response time for the Governor’s Office at all: 320 requests spread across mismatched tabs, 108 of them with nothing recorded in the response column. The office is measurable now, which is progress of a kind. What it measures is a wait that has grown every year since. An administration that asks agencies to meet a standard it does not meet itself has set no standard at all.

SOS — Rank 10, Fail. The floor of the study. Its response packet lists 59 requests at a median of 169 business days, none closed within 30. Cross-referencing its older log puts routine certified-copy requests near 248 business days, roughly a year. It keeps no response-time records. And its cover letter certifies that all 2024 and 2025 requests were resolved “within a timeframe that was practicable and without delay,” a claim its own production contradicts.

Best-Practice Responders and Other Offices

OCI¹⁸: tracking that measures itself. The Office of the Commissioner of Insurance answered IRG in two business days with three years of logs that already carry a per-request days-to-complete column and OCI’s own computed averages. It volunteered that its 2026 averages are provisional because some requests remain open. That is the candor the failing agencies never offered. OCI counts days differently than this report, so its figures are reported as the office states them rather than folded into the rankings.

DVA¹⁹: the dashboard, still alive. The Department of Veterans Affairs answered in three business days with links: a public page of pending requests, a quarterly performance dashboard, and a list of closed files.

¹⁷ The Governor’s Office is the state’s chief executive: it proposes the biennial budget, signs or vetoes legislation, issues executive orders, and appoints agency secretaries, judges, and the members of scores of boards and commissions. It is also the office that issued the two executive orders against which this report measures everyone else.

¹⁸ The Office of the Commissioner of Insurance licenses and examines the insurers doing business in Wisconsin, reviews policy forms and rates, and investigates consumer complaints against carriers.

¹⁹ The Department of Veterans Affairs administers state veterans benefits, operates the veterans homes at King, Union Grove, and Chippewa Falls, and maintains the state veterans cemeteries.

That is the architecture the executive orders called for, maintained by a single agency on its own initiative. Any citizen can check DVA's record without filing anything.

State Treasurer. Answered in three business days; keeps no tracking log, citing its small size and volume. Recorded as a responding office; not scored.

Public Service Commission. The PSC answered on July 23, 2026, 63 business days after the request. It produced its 2026 request log, reported no records of average response times, and denied the public-interest item as insufficiently specific under Wis. Stat. § 19.35(1)(h), citing *State ex rel. Gehl v. Connors*. The citation does not fit. *Gehl* concerned a demand for virtually every email exchanged between five county departments and some thirty-four individuals over two years, tied to no subject matter at all. IRG asked for three defined categories across a fixed 28-month window, and the Court of Appeals was explicit in that same case that volume alone does not make a request insufficient. IRG will transcribe and score the PSC log in the live version of this report.

Still Waiting: DATCP and DOR

The law gives a custodian two responses: produce the records or deny the request. An office that does neither has made a decision.²⁰ As of August 6, 2026, two offices, DATCP and DOR, have produced nothing in response to IRG's April 22 request: no records, no denial, no fee estimate, nothing beyond automated receipts. That is 76 business days, more than seven times the State's benchmark, and counting. IRG sent each a written follow-up on July 7, which dates the delay without excusing it.

The history makes the silence louder. The September 2019 review measured the five cabinet agencies that were subject to the executive orders and found every one of them inside the benchmark: DNR at an eight-business-day average, and DATCP, DOA, DHS and DOR at nine. It did not single those five out for praise. They were simply all of the agencies it could measure, and all of them passed.²¹ Of that group, DNR now ranks second on this scorecard and DHS sixth, carrying the study's heaviest backlog. DATCP and DOR have not answered at all. Their standing here changes the day they answer; until then, this report counts the non-response as a result. IRG will update the live version of this report the day either agency responds, and will pursue its remedies under Wis. Stat. § 19.37 if neither does.

²⁰ Wis. Stat. § 19.35(4)(a); Wisconsin DOJ, Public Records Law Compliance Guide (June 2025) (custodian must respond to every request, including one for which no responsive records exist).

²¹ Wisconsin Institute for Law & Liberty, study of state agency compliance with the Walker open government executive orders (Sept. 2019).

Recommendations

1. Re-embrace the standards already on the books. The Governor should direct agencies to follow Executive Orders #189 and #235: acknowledge promptly, fill simple requests within 10 business days where practicable, keep a log that records both dates, and publish the numbers on a restored public dashboard. Neither order was ever repealed, so this takes no new instrument, only a decision to treat them as live. Nothing here requires new authority or new money. DFI, DNR, DSPS, and DOT are meeting the standard now, and DOT never stopped running the system.

2. Failing that, legislative oversight. The government-operations committees should call the worst performers to account, and the Joint Legislative Audit Committee should direct the Legislative Audit Bureau to evaluate public records compliance statewide, using request-weighted response times, not the flattering averages some agencies publish.

3. Codify the floor. The Legislature should require every agency to keep a standardized log (date received, date acknowledged, date of final response, outcome, legal basis for any withholding, fees) and to report request-weighted response times publicly each quarter. DWD shows why reporting must be mandatory; SOS's migration-corrupted log shows why data integrity belongs in statute; DHS's misleading average shows why the metric must be defined by law.

4. Restore the requester's remedy. A right with no affordable remedy is a suggestion. Since 2022 an authority that withholds records and releases them only after it is sued can leave the requester holding the legal bill, which prices ordinary Wisconsinites out of enforcing their own statute. 2025 Assembly Bill 190 and 2025 Senate Bill 194 would have restored fee recovery where a lawsuit was a substantial factor in prompting release. The bill passed the Senate, cleared committee nine to nothing, drew no registered opposition, and was backed by the Wisconsin Newspaper Association, the Wisconsin Broadcasters Association, the ACLU of Wisconsin, and WILL. It died in the Assembly on March 23, 2026 without a floor vote. It should be taken up again. Until it is, enforcement will keep happening the expensive way: on July 7, 2026, the Milwaukee Journal Sentinel and Wisconsin Right Now, outlets that agree on very little, sued the Department of Administration together in Dane County over records withheld from both of them, represented by the same lawyer.²²

²² *Friends of Frame Park, U.A. v. City of Waukesha*, 2022 WI 57; 2025 Assembly Bill 190 and 2025 Senate Bill 194 (Sen. Wanggaard; Rep. Novak), Assembly action of Mar. 23, 2026; Milwaukee Journal Sentinel and Wisconsin Right Now v. Department of Administration (Dane County Cir. Ct., filed July 7, 2026), Wisconsin Transparency Project counsel of record.

Take Action

File your own request. Every Wisconsinite has the right; templates are available from the Wisconsin DOJ Office of Open Government and the Wisconsin Freedom of Information Council.

Ask for the log. When you file, also request the agency's tracking log, or ask why it does not keep one. Everything in this report came from exactly that kind of request.

Contact your legislators. Ask them to support restoring the public dashboard and requiring standardized response-time reporting.

Share this report. Sunlight only disinfects what it reaches.

The Bottom Line

This report asks one question: when a Wisconsinite requests a public record, does the government answer promptly, honestly, and on the same terms for everyone? Some agencies do, with the staff and budget they already have. Others make the public wait nearly a year and then certify, in writing, that nothing was delayed. Two will not answer at all. Behind every entry in these logs is a Wisconsinite: a journalist chasing taxpayer dollars, a small-business owner trying to make sense of a regulation, a parent checking how a case was handled, all waiting for something the law already says is theirs. A year-long wait is a denial with a friendlier name.

Wisconsin met this standard within the last decade, and the offices at the top of this scorecard are meeting it today. The dashboard can be turned back on with an executive order and a spreadsheet. What is missing is the decision to do it.

Wisconsin set a 10-day records standard for itself in 2016. Half its agencies no longer meet it.

IRG asked 20 state agencies and constitutional offices for their own public-records tracking logs. Ten produced a log complete enough to score. Those logs hold 55,604 requests.

THE SCORECARD

median business days to a final answer

DFI 0 PASS	DNR 1 PASS	DSPS 1 PASS	DOT 1 PASS	WHEDA 6 BACKLOG	DHS 8 BACKLOG	DCF 9 PASS	DWD 14 SLOW	GOV 18 SLOW	SOS 169 SLOW
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Pass = median of 10 business days or fewer and under 10% of logged requests still open.

Ranked best to worst. GOV = Office of the Governor.

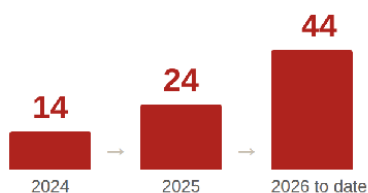
WHAT WAS ORDERED → WHERE IT STANDS

Executive Orders #189 (2016) and #235 (2017)

01 Fulfill simple requests within 10 business days.	Five of the ten scored offices miss it. The range runs from same day at the Department of Financial Institutions to 169 business days at the Secretary of State, whose cover letter still certifies everything was handled “without delay.”
02 Acknowledge every request within one business day.	DHS still does it on every request. DATCP and DOR have sent nothing at all — no records and no denial — in 76 business days.
03 Maintain a system that tracks every request.	DOT still runs the system built for EO #189 , down to a SharePoint address named “open-eo189.” Four offices told IRG they keep no response-time records at all; their own logs hold every date needed to compute one.
04 Post response times on a public dashboard, updated quarterly.	The statewide dashboard went dark after the administration changed; a 2019 review found it “no longer active.” The Department of Veterans Affairs is the one office still publishing its own numbers.

THE EXAMPLE FROM THE TOP

The Governor's Office is getting slower every year.



Median business days to a final answer. The office took **59 business days** to produce its own log, answered one of the request's three parts, and ranks ninth of ten.

GONE DARK

Two agencies have stopped answering entirely.

76 business days of silence from DATCP and DOR

Wisconsin law gives a custodian two options: produce the record or deny the request in writing. Neither agency has done either. Both were asked on April 22, 2026. IRG followed up on July 7. A 2019 review praised both as models of responsiveness.

THE FIX IS ALREADY RUNNING INSIDE STATE GOVERNMENT

DOT never stopped using its EO #189 tracking system. DVA still publishes a public dashboard. The Office of the Commissioner of Insurance keeps a log that computes its own averages. Every practice this report recommends is in use today at a Wisconsin agency.